

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF SOLOVEY AND OTHERS v. RUSSIA

(Applications nos. 27990/18 and 11 others –
see appended list)

JUDGMENT

STRASBOURG

10 November 2022

This judgment is final but it may be subject to editorial revision.



In the case of Solovey and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*

Andreas Zünd*,*

Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 20 October 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 OF THE CONVENTION

6. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> ...

> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ..."

7. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

8. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility (taking also into account the three-month extension introduced by decision of the President of the Court in 2020 as a consequence of the lockdown imposed in France on account of the COVID-19 pandemic (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022), and also dismissing the Government's objection in some of the applications related to non-exhaustion of a cassation instance (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017)) and merits of these complaints. The Court discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by the Russian law. It concludes that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicants' arrest and detention were not "in accordance with a procedure prescribed by law".

9. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be

declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies; *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, 7 February 2017, concerning restrictions on location, time or manner of conduct of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences).

11. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], no. 1253/04 and 2 others, § 96, 11 December 2014), the Court considers it reasonable to award the sums indicated in the appended table and rejects the remaining claims of the applicants for just satisfaction.

14. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints about unlawful detention (deprivation of liberty) and other complaints under the well-established case-law of the Court, as laid down in the appended table, admissible, and *decides* that it is not necessary to examine separately the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses;

3. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see the appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

6. *Dismisses* the remainder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 10 November 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	27990/18 28/05/2018	**Vladislava Igorevna SOLOVEY** 1988	Markin Konstantin Aleksandrovich Velikiy Novgorod	05/05/2018,	07/05/2018	Applicant taken to the police station as an administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Detention as an administrative suspect: beyond the 48-hour statutory period (Art. 27.5(3)-(4) and Art. 29.6(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative offence proceedings; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Anti-corruption manifestation in Moscow on 05/05/2018, charges under Article 19.3 § 1 of CAO, 10 days' administrative arrest, final decision - Moscow City Court, 08/05/2018.	3,900
2.	56367/18 16/11/2018	**Olga Vladimirovna SAVCHENKO** 1993	Sergeyeva Irina Vadimovna Moscow	16/04/2018 6 p.m.	17/04/2018 5.30 p.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of Telegram messenger in Moscow on 16/04/2018. Conviction under Article 20.2.2	3,900

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							§ 1 of CAO with fine of RUB 10,000. Moscow City Court, 30/05/2018.	
3.	4400/19 13/12/2018	**Albina Marselevna FAKHRAZIEVA** 1990	Khrunova Irina Vladimirovna Kazan	18/03/2018, 12.35 p.m.	18/03/2018, 4.56 p.m.	Applicant taken to the police station as an administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - 14 June 2018, Sovetskiy District Court of Kazan; Administrative fine of RUB 2,000.	3,900
4.	15090/19 12/02/2019	**Yekaterina Alekseyevna BAKANOVA** 1998	Peredruk Aleksandr Dmitriyevich St Petersburg	09/09/2018	11/09/2018	Applicant taken to the police station as an administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 6.1 of CAO, the applicant was sentenced to the fine of RUB 10,000 for participating in the demonstration against the pension reform in St Petersburg on 09/09/2018. Final decision - 04/10/2018, St. Petersburg City Court.	3,900
5.	16262/19 07/03/2019	**Anastasiya Timofeyevna CHERNIK** 1997	Peredruk Aleksandr Dmitriyevich St Petersburg	09/09/2018	11/09/2018	Applicant taken to the police station as an administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: the	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 6.1 of CAO, the applicant was sentenced to 30 hours of labour service for participating in the demonstration against the pension reform in St Petersburg on	3,900

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						applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019).	09/09/2018. Final decision - 27/09/2018, St. Petersburg City Court.	
6.	16918/19 17/03/2019	**Aleksey Aleksandrovich DROZDOV** 1976	Gorbachev Aleksandr Nikolayevich St Petersburg	09/09/2018	10/09/2018	Applicant taken to the police station as an administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 6.1 of CAO, the applicant was sentenced to 10 days of administrative detention for participating in the demonstration against the pension reform in St Petersburg on 09/09/2018. Final decision - 18/09/2018, St. Petersburg City Court.	3,900
7.	17414/19 17/03/2019	**Aleksandr Sergeyevich ORLOV** 1993	Grachev Anton Sergeyevich Gatchina	09/09/2018	10/09/2018	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 6.1 of CAO, the applicant was sentenced to 11 days of administrative detention for participating in the demonstration against the pension reform in St Petersburg on 09/09/2018. Final decision - 18/09/2018, St. Petersburg City Court.	3,900
8.	24823/19 09/04/2019	**Igor Vitalyevich SHALUPOV** 1997	Mikhaylova Varvara Dmitriyevna St Petersburg	09/09/2018	10/09/2018	Applicant taken to the police station as an administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee],	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative proceedings; Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Under Article 20.2 § 6.1 of CAO, the app. was sentenced to the administrative detention of	3,900

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						nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. ussia, no. 72051/17, § 35, 8 October 2019).	7 days for participating in the demonstration against the pension reform in St. Petersburg on 09/09/2018. Final decision - 11/10/2018, St Petersburg City Court.	
9.	31246/20 30/06/2020	**Agata Malkina GILMAN** 2000	Mezak Ernest Aleksandrovich Nantes	12/06/2019	12/06/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings - administrative fine of RUB 10,000; 08/10/2019, Moscow City Court; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - disproportionate measures taken against the applicants as participants of peaceful assembly, namely the applicants' administrative arrest and conviction for having participated in an unauthorised public event (Frumkin v. Russia, no. 74568/12, §§ 93-142, 5 January 2016; Navalnyy and Yashin v. Russia, no. 76204/11, §§ 49-75, 4 December 2014; and Kasparov and Others v. Russia, no 21613/07, §§ 82-97, 3 October 2013). Demonstration in support of the journalist I. Golunov on 12/06/2019. Conviction under Article 20.2 § 6.1 of CAO, administrative fine of RUB 10,000. Final judgment - 08/10/2019, Moscow City Court .	3,900
10.	34451/20 26/06/2020	**Tatyana Arkadyevna MALKINA** 1967	Mezak Ernest Aleksandrovich Nantes	12/06/2019	12/06/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee],	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - fine of RUB 10,000, 26/09/2019, Moscow City Court; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - disproportionate measures	3,900

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						nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	against organisers and participants of public assemblies - disproportionate measures taken against the applicants as participants of peaceful assembly, namely the applicants' administrative arrest and conviction for having participated in an unauthorised public event (Frumkin v. Russia, no. 74568/12, §§ 93-142, 5 January 2016; Navalnyy and Yashin v. Russia, no. 76204/11, §§ 49-75, 4 December 2014; and Kasparov and Others v. Russia, no 21613/07, §§ 82-97, 3 October 2013). Demonstration in support of the journalist I. Golunov on 12/06/2019. Conviction under Article 20.2 § 6.1 of CAO, administrative fine of RUB 10,000. Final judgment - 26/09/2019, Moscow City Court.	
11.	37767/20 10/08/2020	**Sergey Mikhaylovich ARTSISHEVSKIY** 1965	Mezak Ernest Aleksandrovich Nantes	12/06/2019	12/06/2019	Applicant taken to the police station as an administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - administrative fine of RUB 10,000; Final judgment -10/02/2020, Moscow City Court; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - disproportionate measures taken against the applicants as participants of peaceful assembly, namely the applicants' administrative arrest and conviction for having participated in an unauthorised public event (Frumkin v. Russia, no.74568/12, §§ 93-142, 5 January 2016; Navalnyy and Yashin v. Russia, no. 76204/11, §§ 49-75, 4 December 2014; and Kasparov and Others v. Russia, no. 21613/07, §§ 82-97, 3 October 2013). Demonstration in support of the journalist I. Golunov on 12/06/2019.	3,900

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							Conviction under Article 20.2 § 6.1 of CAO, administrative fine of RUB 10,000. Final judgment - 10/02/2020, Moscow City Court.	
12.	38308/20 12/08/2020	**Pavel Borisovich VERSTOV** 1972	Mezak Ernest Aleksandrovich Nantes	12/06/2019	12/06/2019	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - administrative fine of RUB 10,000; Final judgment - 12/11/2019, Moscow City Court; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - disproportionate measures taken against the applicants as participants of peaceful assembly, namely the applicants' administrative arrest and conviction for having participated in an unauthorised public event (Frumkin v. Russia, no.74568/12, §§ 93-142, 5 January 2016; Navalnyy and Yashin v. Russia, no. 76204/11, §§ 49-75, 4 December 2014; and Kasparov and Others v. Russia, no. 21613/07, §§ 82-97, 3 October 2013). Demonstration in support of the journalist I. Golunov on 12/06/2019. Conviction under Article 20.2 § 6.1 of CAO, administrative fine of RUB 10,000. Final judgment - 12/11/2019, Moscow City Court.	3,900

[1] Plus any tax that may be chargeable to the applicants.